

25STCV35347 25STCV35347

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-08-06

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Case Number: 25STCV35347 Hearing Date: August 6, 2026 Dept: 307

11 TENTATIVE RULING 9:15 a.m., Thursday, August 6, 2026

XAVIER

RAINES v. UBER TECHNOLOGIES, INC., et al. [25STCV35347]

DEFENDANTS

UBER TECHNOLOGIES, INC. AND RASIER, LLC'S MOTION TO COMPEL ARBITRATION AND STAY ACTION

TIMELINE:

Negligence action arising from motor vehicle accident

9/25/2024: Plaintiff Xavier Raines

("Plaintiff") was a passenger in a 2022 Toyota Camry (the "Vehicle") in a southbound direction on I-5 in Mission Viejo. The Vehicle was being operated in a rideshare capacity by Defendant Uber Technologies, Inc. and driven by Defendant Christian Meng ("Meng"). Meng was acting in his capacity as an agent of Uber Technologies, Inc. and/or Defendant Rasier, LLC (collectively, "Uber"). Meng lost control of the Vehicle while changing lanes and caused a collision with another vehicle, causing Plaintiff to suffer injuries.

12/4/2026: Plaintiff files the Complaint. The operative First Amended Complaint ("FAC"), filed 12/16/2026, alleges causes of action for:

1. Negligence and Violation of Common

Carrier's Duty of Care

2. Negligence

6/24/2026: Uber files this Motion to Compel Arbitration, which is followed by Plaintiff's Opposition (7/6/2026) and Uber's Reply (7/9/2026).

7/6/2026: Defendant Christian Meng files a Joinder to Uber's arbitration motion.

TENTATIVE

RULING: DEFENDANTS UBER TECHNOLOGIES, INC. AND RASIER, LLC'S MOTION TO COMPEL ARBITRATION AND STAY ACTION is GRANTED.

I. MOTION TO COMPEL ARBITRATION

Uber seeks an order compelling Plaintiff to submit his claims to arbitration on the grounds that a written arbitration agreement exists which governs the negligence claims asserted in Plaintiff's Complaint.

Uber submits a copy of the Uber's Terms of Use (dated July 15, 2020), which Plaintiff accepted by acknowledging a checkbox when he created his Uber account on August 28, 2020. (Pare Decl., ¶ 9, Exhs. A, B.) Plaintiff subsequently agreed to Uber's updated Terms of Use on multiple occasions, in March 2021, January 2022, and January 2023. (Id. ¶¶ 10, 14, Exhs. C, D.) Each version of Uber's Terms of Use requires Plaintiff to resolve any claim he may have against Uber in arbitration. (Id. Exhs. B, D.) For example, the most recent version of the Terms of Use (the "2023 Agreement"), which was operative at the time of the accident underlying Plaintiff's Complaint, contains the following "Arbitration Agreement" provision:

By agreeing to these Terms, you agree that you are required to resolve any claim that you may have against Uber on an individual basis in arbitration as set forth in this Arbitration Agreement [...]. You and Uber are each waiving your right to a trial by jury. [...]

(Id. Exh. D [2023 Agreement], § 2.) The 2023 Agreement defines "Covered Disputes" to include the following claims:

Except as expressly provided below

in Section 2(b), you and Uber agree that any dispute, claim, or controversy in any way arising out of or relating to (i) these Terms and prior versions of these Terms, or the existence, breach, termination, enforcement, interpretation, scope, waiver, or validity thereof; (ii) your access to or use of the Services at any time; (iii) incidents or accidents resulting in personal injury to you or anyone else that you allege occurred in connection with your use of the Services (including, but not limited to, your use of the Uber Marketplace Platform or the driver version of the Uber App), regardless whether the dispute, claim, or controversy occurred or accrued before or after the date you agreed to these Terms, and regardless whether you allege that the personal injury was experienced by you or anyone else; and (iv) your relationship with Uber, will be settled by binding individual arbitration between you and Uber, and not in a court of law. This Arbitration Agreement survives after your relationship with Uber ends.

(Id. Exh. D [2023 Agreement], § 2(a).)

In this case, Plaintiff's Complaint asserts

two negligence-based causes of action against Uber which expressly arise out of a motor vehicle accident involving an Uber rideshare Vehicle which was being operated in the scope of the driver's agency with Uber. (Compl., ¶¶ 10, 16, 20, 22-23.) Plaintiff cannot dispute that his negligence claims arise out of his use of Uber's rideshare services. Thus, the Court finds that Plaintiff's Complaint falls squarely within the scope of Uber's Arbitration Agreement in the operative Terms of Use, because it is a "dispute, claim, or controversy ... arising out of or relating to," at minimum, Plaintiff's "use of the [Uber] Services," and/or "accidents resulting in personal injury to [Plaintiff] ... that [Plaintiff] allege[s] occurred in connection with [his] use of the Services." (Pare Decl., Exh. D [2023 Agreement], § 2(a).)

Plaintiff responds that the Arbitration

Agreement in Uber's Terms of Use does not apply to the instant Complaint because Uber cannot show that the underlying rideshare ride was procured using Plaintiff's personal Uber account. (Opp., at p. 3.) Plaintiff contends that a third party (not Plaintiff) independently arranged Plaintiff's rideshare ride, and thus, Plaintiff did not request the ride or access the Uber platform in connection with his transportation in the Vehicle. (Ibid.) Although Plaintiff appears to concede that "Plaintiff previously created an Uber account

and accepted Uber's Terms of Use in connection with his own use of Uber's platform," he argues that Uber fails to show that the Vehicle ride underlying this action was connected to Plaintiff's contractual relationship with Uber in particular. The Court finds Plaintiff's argument to be unpersuasive.

As described above, the Complaint admits that Plaintiff was riding as a passenger in an Uber vehicle at the time of the accident. (Compl., ¶ 21.) The unambiguous language of the Arbitration Agreement, which Plaintiff admits he consented to in connection with his own Uber account, is broad enough that it covers all disputes arising from Plaintiff's mere use of Uber's services. (Pare Decl., Exh. D [2023 Agreement], § 2(a)(ii)-(iii).) Meanwhile, the Arbitration Agreement contains no limiting language stating that such "use" of Uber's Services must be connected with Plaintiff's personal account. The question here is not whether Plaintiff "contracted for" the specific rideshare ride, but whether Plaintiff was using Uber's Services at the time of the accident and whether Plaintiff is alleging that he sustained personal injuries from an accident that occurred while he was using Uber's Services such that Plaintiff's own contract with Uber is implicated. Plaintiff concedes these facts in his Complaint. (Compl., ¶¶ 10, 16, 20-23.)

Finally, even if Plaintiff were correct that the Terms of Use governing his own Uber account do not govern this rideshare ride, Plaintiff cannot avoid that the third-party account holder who did order the ride necessarily agreed to the same operative "Terms of Use" to access the Uber platform through a separate account. Uber submits the declaration of the Lead Paralegal at Uber Technologies, Inc., who declares that all Uber users must register for an account and agree to the Terms of Use in order to utilize Uber's platforms. (Pare Decl., ¶ 6.) It can be inferred that the third-party account holder was required to agree to the same 2023 Agreement to continue utilizing their Uber account at the time of Plaintiff's accident. (Id. Exh. D.) Notably, the 2023 Agreement contains an "Application to Third Parties" section, which states:

This Arbitration Agreement shall be binding upon, and shall include any claims brought by or against any third parties, including but not limited to your spouses, heirs, third-party beneficiaries and assigns, where their underlying claims arise out of or relate to your use of the Services. To the extent that any third-party beneficiary to this agreement brings claims against the Parties, those claims shall also be

subject to this Arbitration Agreement.

(Id. Exh. D [2023 Agreement], § 2(a)(5), emphasis added.) In this case, Plaintiff's admission that he was a passenger in the Uber Vehicle at issue demonstrates that he was receiving the benefit of Uber's services, even if those benefits were conferred by another Uber account holder. (Compl., ¶ 21.) Thus, even if Plaintiff's own status as an Uber account holder does not govern the dispute here (although the Court finds that it does), Plaintiff's negligence claims necessarily arise, at minimum, from the third-party account holder's access of Uber's Services and/or their relationship with Uber and Plaintiff's status as a third-party beneficiary. (*Benasra v. Marciano* (2001) 92 Cal.App.4th 987, 991-993 [a non-signatory can be compelled to arbitrate where there was intent to benefit that third party under the contract]; see also *Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 269 ["A nonsignatory is estopped from refusing to comply with an arbitration clause 'when it receives a "direct benefit" from a contract containing an arbitration clause."'].)

As Plaintiff has not demonstrated that the Arbitration Agreement is unenforceable against him in connection with his Complaint, the Court finds that Plaintiff fails to overcome his responsive burden. Therefore, Uber's Motion to Compel Arbitration is GRANTED.

II. MOTION

TO STAY – GRANTED

Based on the above ruling granting Uber's motion to compel arbitration, the Court also grants Uber's request to stay the pending litigation until arbitration has been completed. (Code Civ. Pro. § 1281.4.)

III. JOINDER

TO MOTION TO COMPEL ARBITRATION – GRANTED

Defendant

Meng joins Uber's motion to compel arbitration. The notice of joinder was filed and served to Plaintiff by email on July 6, 2026. Even disregarding the additional time that must be added to the notice period where moving papers are served electronically, Meng's notice of joinder was untimely filed and served. (Code Civ. Pro. § 1005; Cal. Rules of

Court, rule 3.1300.)² As Plaintiff has not had a fair opportunity to respond to this untimely filing (his Opposition was filed before the joinder was filed), the Court finds that Plaintiff could be prejudiced if the Court were to consider the joinder without permitting Plaintiff an opportunity to respond at the hearing.

Further, Meng's joinder is entirely devoid of any legal authority or argument demonstrating that Meng has standing to enforce the Arbitration Agreement against Plaintiff. Meng's notice of joinder simply incorporates Uber's motion by reference, although Uber's motion does not address whether Uber's agents are permitted to enforce the Terms of Use. Where a defendant is not a signatory to an arbitration agreement, that defendant "bears the burden to establish he or she is a party to the arbitration agreement/provision covering the dispute." (Jones v. Jacobson (2011) 195 Cal.App.4th 1, 15.) Meng has not done so here. Meng does not allege he is a third party beneficiary under the provision identified above.

Therefore,
the Joinder to the Motion to Compel Arbitration is DENIED.

Defendants Uber Technologies, Inc. and Rasier, LLC to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

This TR was emailed to counsel and posted to court's website by 8/6/26 by 2 p.m.